IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **26.07.2024** THROUGH VIDEO CONFERENCING

PRESENT: HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

APPLICATION NUMBER	**:** CA(CAA)/33(CHE)/2024
PETITION NUMBER	**:**
NAME OF THE PETITIONER(S)	**:** L & T Energy Hydrocarbon Engineering Ltd and Others
NAME OF THE RESPONDENTS	**:**
UNDER SECTION	**:** Sec 230-232 of CA, 2013

ORDER

Present: Ld. Counsel Ms. Geethi Ara for the Applicant.

Vide separate order pronounced in open court, the application is allowed.

Sd/- **Sd/-**

(VENKATARAMAN SUBRAMANIAM)
MEMBER (TECHNICAL)

(SANJIV JAIN)
MEMBER (JUDICIAL)

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IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

CA (CAA)/33(CHE)/2024

(Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Amalgamation
Between

L&T ENERGY HYDROCARBON ENGINEERING LIMITED
CIN NO. U28920MH1994PLC083035
REGISTERED OFFICE AT L&T HOUSE,
N.M. MARG, BALLARD ESTATE,
MUMBAI-400 001.

… Transferor Company.1

And

L&T OFFSHORE PRIVATE LIMITED
CIN NO. U11200TN2010PTC077214
REGISTERED OFFICE AT MOUNT POONAMALLEE ROAD,
P.O. BOX NO. 979, MANAPAKKAM,
CHENNAI-600 089.

... Applicant Company/ Transferor Company.2

And

LARSEN & TOUBRO LIMITED
CIN NO. L99999MH1946PLC004768
REGISTERED OFFICE AT L&T HOUSE,
N.M. MARG, BALLARD ESTATE,
MUMBAI-400 001.

... Transferee Company

And its shareholders

Order Pronounced ***26th July 2024***

CORAM:

SANJIV JAIN, MEMBER (JUDICIAL)
VENKAT RAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

For Applicant(s): Ms. Geetha Ara, Advocate.

O R D E R

This is an application filed by **L&T ENERGY HYDROCARBON ENGINEERING LIMITED** (hereinafter Transferor Company-1) and **L&T OFFSHORE PRIVATE LIMITED** (hereinafter Transferor Company-2/Applicant Company) and **LARSEN & TOUBRO LIMITED** (hereinafter Transferee Company) its Shareholders under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies herein with its Shareholders. The said Scheme is placed as **Annexure 4** of the Application Typeset.

2. The Applicant Company-I/Transferor Company-2 in this Company Application has sought for the following reliefs;

	EQUITY SHAREHOLDERS	UNSECURED DEBENTURE HOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
Applicant/ Transferor Company-2	Dispense with meeting	N/A	N/A	Dispense with meeting

3. It is stated that,

(i) The Transferor Company-2 is a private company incorporated under the provisions of Companies Act, 2013 on 02.09.2010 with CIN: U11200TN2010PTC077214.

Particulars	**Amount in Rs.**
Authorised Share Capital	
2,25,00,000 Equity Shares of Rs.10/- each	22,50,00,000
Issued Subscribed and paid up share capital	
10,000 Equity Shares of Rs.10/- each	1,00,000

4. The Applicant Company has filed its Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Financial Statements for the year ended 31.03.2023 and unaudited financial statements for the year ended on 31.12.2023.

5. The Board of Directors of the Applicant Company has unanimously approved the proposed Scheme in the board meeting

held on 07.02.2024 and copy of the resolution passed thereon has been placed on record by the Applicant Company.

6. The Appointed date as specified in the Scheme shall be 01.04.2024.

7. The Statutory Auditors of the Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The copies of Section 133 certificate as per the Companies Act, 2013 is placed as ***Annexure 12*** of the Application typeset.

8. Taking into consideration the application filed by the Applicant Company and the documents filed therewith as well as the position of law, this Tribunal issues the following directions : -

A. **L&T OFFSHORE PRIVATE LIMITED (APPLICANT/TRANSFEROR COMPANY-2)**

I. With respect to the Equity Shareholders:

(i) There are **two (2)** Equity Shareholders, whose consent affidavits are placed at **Pgs.133.** The Certificate issued by the

Chartered Accountant certifying the list of Equity Shareholders is placed at **Pgs.207** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Transferor Company-2 that there are **two (2)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

II. With respect to the Secured Creditors:

(i) It is represented by the Transferor Company-2 that there is 'Nil' secured creditor in the Company. The Certificate issued by the Chartered Accountant certifying the same is placed at Page.139 of the Application typeset. Since it is represented that, there is 'NIL' secured creditor in the company the necessity of convening, holding and conducting a meeting ***does not arise.***

III. With respect to the Unsecured Creditors:

(i) There are **three (3)** Unsecured Creditors, whose consent affidavits are placed at **Pgs.142.** The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditors is placed at **Pgs.146** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Transferor Company-2 that there are **three (3)** Unsecured Creditors in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with***.

(iii) The Applicant has filed an affidavit undertaking to earmark a sum of Rs.67,67,630 (Rupees Sixty Seven Lakhs Sixty Seven Thousand Six Hundred and Thirty only) towards the settlement of the aforesaid dues of Sapura offshore Sdn Bdh, an unsecured creditor of the Applicant company, in the event such dues continue to remain outstanding on the sanction of the scheme of amalgamation.

9. Accordingly, the Application stands **allowed.** The Applicant Companies are directed to file the Application for the Second Motion within a period of fourteen (14) days from the date of receipt of this Order.

-Sd- ***-Sd-***

VENKATARAMAN SUBRAMANIAM **SANJIV JAIN**
Member (Technical) Member (Judicial)

Vinita Varshini. K